

Court No. - 39

Case :- WRIT - C No. - 25817 of 2020

Petitioner :- Jay Hind

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Onkar Nath Mishra

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard Shri Onkar Nath Mishra, learned counsel for the petitioner, Shri N.K. Tewari, learned counsel for respondent No. 2 and learned Standing Counsel representing the State.

By means of this writ petition, the petitioner has prayed for quashing of the recovery citation dated 25.2.2020 issued by the respondent No. 2 and also for a direction to respondent No. 2 to correct the electricity bill of the petitioner.

At the very outset learned counsel for the respondent-Corporation submits that on the basis of the checking on the premises of the petitioner, the petitioner was found using electricity for welding purposes whereas the connection was for agricultural purpose. However, he fairly submits that in case the petitioner has any grievance with respect to the accuracy of the bill as shown in the recovery citation, he may approach the respondent No. 2 under Clause 6.5 of the U.P. Electricity Supply Code, 2005 by moving a representation, which shall be considered within the time frame to be fixed by the court.

Learned counsel for the respondent-Corporation has also supplied the required documents to the learned counsel for the petitioner in Court.

In this view of the matter, we dispose of the writ petition with the directions to the petitioner to move a representation before respondent No. 2 within two weeks from today, which shall be considered and decided by a reasoned and speaking order by respondent No. 2 strictly in accordance with law within four weeks thereafter after affording due opportunity of hearing to the petitioner.

For a period of six weeks or till the disposal of representation by respondent No. 2, whichever is earlier, no coercive measure shall be taken against the petitioner.

Order Date :- 27.1.2021

Ishrat